SYNTHETIC COUNTERFACTUAL TRAINING BRANCH — NEVER FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

# Motion to Stay the Mandate

## Motion and timing

The institutional respondent moves on October 23, 2025 to stay issuance of the mandate from the September 9 judgment. The ordinary forty-five-day rehearing period ends October 24, and absent another qualifying event the mandate would issue seven days later. This motion is filed before that date and asks the court to withhold issuance while the respondent prepares a petition for a writ of certiorari.

The respondent recognizes that filing the motion does not itself grant a stay. Rule 41(b) determines the presumptive date following a timely stay motion and any denial, while Rule 41(d) governs the affirmative relief requested here. The court must enter an order before a stay exists. The respondent asks for a prompt ruling and agrees to notify the court of any certiorari filing or change in the grounds asserted.

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## Question proposed for certiorari

The respondent proposes to seek review of whether the court of appeals required more agency explanation than the CAT regulations and deferential review standard demand when the agency discussed each asserted source and formal safeguard. It contends that the panel's application of meaningful-consideration review may blur the line between requiring a reasoned decision and reweighing evidence. A.R.M. disputes that characterization.

The proposed question is legal and does not depend on the post-order proffer or a new factual record. The respondent would rely on the panel opinion, agency decisions, certified AR1–AR238 record, and governing CAT and judicial-review authorities. It does not seek Supreme Court review of the Rule 16(b) correction or the denial of supplementation. Narrowing the proposed question allows the court to assess probability of review and reversal without assuming that every judgment component is contested.

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## Probability and possibility of reversal

The respondent argues that the interaction between aggregate-risk doctrine, meaningful consideration, and Section 1252(b)(4)(B) presents a recurring question and that the panel's remand standard could affect other agency-review cases. It asserts a reasonable probability that certiorari will be granted and a significant possibility that the judgment will be reversed or narrowed. The motion acknowledges that these showings are demanding and that disagreement with the panel is not enough.

A.R.M.'s position, reported after conference, is that the opinion follows Rodriguez-Arias, requires no factual result, and creates no conflict warranting certiorari. The respondent does not characterize that opposition as consent. It asks the court to evaluate the stated legal question, the opinion's limited remand, and the absence of immediate factual relief before deciding whether the Rule 41(d) standards are met.

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## Good cause and requested duration

The respondent contends that good cause exists because mandate would return the matter to the agency and could produce remand proceedings before a certiorari petition is resolved. It argues that a short, bounded stay would preserve the status quo and avoid potentially duplicative proceedings. A.R.M. responds that further delay prolongs resolution of a protection claim and that ordinary remand proceedings do not justify withholding mandate.

If relief is granted, the respondent requests no more than ninety days from the order, subject to the conditions in Rule 41(d)(2). A filed certiorari petition would continue the stay as the rule provides; denial of certiorari would require immediate issuance unless otherwise ordered. The respondent will seek an extension only for good cause and will report any filing promptly.

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## Conclusion and service

The institutional respondent asks the court to stay mandate for a period not exceeding ninety days while it prepares a certiorari petition directed to the legal standard applied in the panel opinion. Alternatively, if the court denies affirmative stay relief, the respondent asks the clerk to calculate issuance under Rule 41(b) from the denial order. The motion seeks no change to the opinion or judgment during the requested period.

Counsel certifies electronic service on A.R.M.'s counsel on October 23, 2025. The motion states the proposed question, probability and reversal arguments, good-cause grounds, requested duration, and opposing position. No factual exhibit outside the certified record is attached. The court may grant or deny the request by order, and either disposition must govern the clerk's next step rather than the motion alone.